

March 23, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0003210 WELLS FARGO BANK, NA vs. MARTIN B BARRON JR, an individual

No appearances required. In light of the proof of service of the Summons and Complaint filed on March 9, 2026, the OSC re Dismissal is vacated.

2. CL0003462 Velocity Investments LLC vs. Jessica Kepfer

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for over four (4) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for July 17, 2026 at 11:00 a.m.

3. CL0003511 Barclays Bank Delaware vs. Owen Manville

No appearances required. On the Court's own motion and in light of the Declaration of Non-Service filed by Plaintiff, the Court continues the OSC re Dismissal to May 11, 2026 at 1:30 p.m. in Dept. A. Plaintiff shall file a proof of service, an application to serve by publication (if deemed appropriate), or a request for dismissal of defendant in advance of the continued order to show cause date.

4. CL0003535 American Express National Bank vs. Heidi Petyo et al

No appearances required. On the Court's own motion and in light of the Declaration filed by counsel for Plaintiff, the Court continues the OSC re Dismissal to May 11, 2026 at 1:30 p.m. in Dept. A. Plaintiff shall file a proof of service, an application to serve by publication (if deemed appropriate), or a request for dismissal of Defendant The Good Wolf Brewing Company LLC in advance of the continued order to show cause date.

5. CU0001835 Christopher Holden vs. India Ledward

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to file a Request for Dismissal despite the fact a Notice of Settlement was filed over three (3) months ago. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420.

6. CU0002654 Luz Maria Alanis Mireles vs. Justin Oconnor

This matter is before the Court on a petition for compromise of minor's claims. Appearances by counsel for Petitioner and the Petition/guardian ad litem are required. Petitioner is directed to file a corrected Petition to correct the below deficiencies prior to the hearing. If not filed prior to the hearing, the Court intends to continue the hearing to April 13, 2026 at 1:30 p.m.

- Attachment 9a contains an Invoice from Truckee Fire Protection District showing a balance due of \$2693.71. Clarify whether this invoice has been paid, waived, or if it will be paid from the settlement agreement.
- Attachment 12 does not include the “reasons for the apportionment of the settlement payments between the claimant and each other plaintiff,” it only includes the apportionment.
- The Declaration of Michelle L. Olivarez re Attorney's Fees mislabels the Exhibits. Exhibit A is the retainer agreement and Exhibit B is the itemization of costs. The Declaration states "Wilshire Law Firm was forced to advance a total of \$1,385.02 in costs associated with this matter, including the filing [sic] fee for this petition." However, Exhibit B contains no itemized filing fee costs. Additionally, the itemized costs are for \$1295.02 for "ChartSquad", but there is no explanation of what ChartSquad is and why such costs were necessary. Finally, the amount of costs in the Declaration, \$1,385.02, do not match the amount of costs in Exhibit B, \$1295.02. Please update the Declaration and Exhibits accordingly.
- “Attachment 18a(2)” appears to be mislabeled. The Court assumes it should be labeled Attachment 19b(2).